

Memo.No.490/SC.E/87-1, Genl.Admn.(SC.E) Dept., dt.13.03.1987 regarding entrustment of inquiries to Commissioner of Inquiries - check-list prescribed.

Subject Heading : Commissioner of Inquiries - entrustment of inquiries

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- Ref : 1. U.O.Note No.910/SC.D/85-1, G.A.(SC.D) Dept.,dt.26.08.85.
2. U.O. Note No. 531/SC.D/86-1, G.A.(SC.D) Dept., dt.06.05.86.
3. Govt.Memo.No.1496/SC.E/86-1, G.A.(SC.E) Dept., dt.16.07.86.
4. Govt. Memo. No.1496/SC.E/86-2, G.A.(SC.E) Dept., dt.08.08.86.
5. Govt.Memo. No.3325/SC.E/86-1, G.A.(SC.E) Dept., dt.02.12.86.

Attention is invited to the references cited.

2. In the first two references cited instructions have been issued regarding the examination of A.C.B. reports by the Departments of Secretariat independently. In the last three references cited instructions have been issued regarding entrusting of Departmental Enquiries to the Commissioner for Departmental Enquiries.

3. The Departmental Enquiries so far entrusted to the Commissioner for Departmental Enquiries have been reviewed and also discussed in a meeting of Secretaries held on 25.02.1987. As a result, the following further instructions are issued regarding entrusting of departmental enquiries to the Commissioner for Departmental Enquiries.

4.1. In modification of the orders issued in the references fourth and fifth cited, only cases of employees in whose case the appointing authority is the Government should be referred to the Commissioner for Departmental Enquiries. However, in respect of cases enquired into by the Anti Corruption Bureau and recommended for Departmental action, all cases of Gazetted Officers irrespective of whether the appointing authority is the Government or the Head of Department, shall be referred to the Commissioner for Departmental Enquiries.

4.2. Only those cases which may require the imposition of a major penalty should be referred to the Commissioner for Departmental Enquiries in respect of cases covered by para 4.1 above.

4.3. In cases enquired into by the Anti-Corruption Bureau which may require the imposition of a major penalty, the A.C.B. while recommending departmental action by the Commissioner for Departmental Enquiries should enclose draft charges with statement of imputations (allegations on which each charge is based), list of witnesses and Documents for consideration by the appropriate disciplinary authority. When the disciplinary authority, after examination of the report, comes to a conclusion that the matter may be referred to the Commissioner for Departmental Enquiries, the draft charges furnished by the A.C.B. may be scrutinised and Memorandum of Articles of charges may be finalised.

4.4. To ensure uniformity in referring the cases to the Commissioner for Departmental Enquiries and also to ensure expeditious disposal of the cases referred to the Commissioner for Departmental Enquiries, a check-list is given in annexure(I) to this Memorandum for the use of the Departments. Charges have to be framed by the appointing /disciplinary authority and served on the Charged Officer together with the grounds on which the charges are based along with list of witnesses and documents, if any, relied upon. The appointing / disciplinary authority will receive and consider the written statement of defence before referring a case to the Commissioner for Departmental Enquiries. If the charges are admitted, the appointing authority can record its findings and issue an order imposing an appropriate penalty. If the Charged Officer gives a satisfactory explanation, the appointing authority may make an order dropping the charges. For cases falling under these two categories, there will be no need to hold an enquiry. Only when the charges have not been admitted by the Government servant or when no written statement is received by the date prescribed, the appointing / disciplinary authority may appoint the Commissioner for Departmental Enquiries as an Enquiry Officer to arrive at the truth or falsity of the charges. The check list indicates the material / information to be sent to the Enquiry Officer for an expeditious disposal of an Inquiry.

(Note: See Part II for Check List (No.28))